

NIGERIA DATA PROTECTION ACT

GENERAL APPLICATION AND IMPLEMENTATION

DIRECTIVE

(GAID) 2025

NDPC/NDP ACT-GAID/01/2025

Nigeria Data Protection Commission

March 2025

RAG Document Format

AUTHORITY

Pursuant to Section 37 of the 1999 Constitution of the Federal Republic of Nigeria, Sections 1(a), 6(c), 61 & 62 of the Nigeria Data Protection Act 2023 and all other powers enabling the Commission in that behalf.

PREAMBLE

WHEREAS, the implementation of the Nigeria Data Protection Act, 2023 is designed to safeguard the right to privacy in accordance with Section 37 of the 1999 Constitution and to foster the trusted use of data in building a sustainable digital economy;

ACKNOWLEDGING the importance of a General Application and Implementation Directive in providing guidance in the space of disruptive technologies and shifting paradigms of data processing;

DESIRING certainty in legal obligations particularly when the rights and freedoms of natural persons may be at risk;

MINDFUL of the need to foster a coherent national adequacy of data protection;

COGNISANT of the function of the Nigeria Data Protection Commission as Nigeria's independent regulatory authority;

THUS, the Commission hereby issues the Nigeria Data Protection Act General Application and Implementation Directive (GAID).

Article 1: The Objectives and Application

In all processes and transactions relating to personal data of data subjects in Nigeria, it is a constitutional obligation to carefully consider the material and territorial scope of the NDP Act.

Key Provisions:

- Applies to data controllers/processors not domiciled in Nigeria but targeting Nigerian data subjects
- Universal protection of civil liberties - natural persons entitled to fundamental rights protection anywhere
- Categories of protected data subjects:
 - Data subjects within Nigeria (regardless of nationality/migration status)
 - Data subjects whose data transferred to Nigeria
 - Data subjects whose data in transit through Nigeria
 - Nigerian citizens outside Nigeria (with mutual legal assistance)

Article 2: Material Context of Data Processing and Priority of the NDP Act

Every person, body or authority owes a duty of care to data subjects to examine the material context of personal data processing to ensure consistency with constitutional privacy rights.

Material contexts include (from Exclusive Legislative List):

- Population data for economic planning
- Immigration and emigration
- Treaty implementation
- Fingerprints and criminal records
- Aviation safety and passenger data
- Banking and financial services
- Census and vital registration
- Citizenship and naturalization
- Currency and legal tender
- Customs and excise
- Defence
- Education
- Health
- Insurance
- Labour and industrial relations
- Maritime operations
- Taxation
- Trade and commerce
- Broadcasting and telecommunications

The NDP Act applies as common statutory authority for privacy protection in the Federal Republic of Nigeria.

Article 3: Statutory Remedy for Double/Multiple Regulatory Frameworks

Section 63 of the NDP Act provides that where provisions of any other law relate to processing of personal data and are inconsistent with the NDP Act, the NDP Act shall prevail.

Key Points:

- NDP Act prevails over conflicting data protection provisions
- In case of conflict between NDP Act and GAID, NDP Act prevails
- NDPR 2019 ceases to apply as legal instrument upon GAID issuance
- Transitional provisions protect actions done under NDPR prior to GAID

Article 4: Cooperation between Commission and Public Authority

Commission shall:

- Collaborate with public authorities to achieve NDP Act objectives
- Cooperate in developing sub-national/sectoral data protection guidelines
- Conduct periodic reviews of sub-national guidelines for NDP Act compliance
- Request joint reviews when guidelines negate NDP Act objectives
- Establish Data Privacy Service Units, Legal Clinics, Centres of Excellence
- Engage Fellows, Associates, Trainees, Champions, DPCOs to participate

Article 5: Evaluation of Exemptions to the NDP Act

Persons relying on exemptions under Section 3 must still comply with non-exempted provisions.

Minimum binding provisions for exempted activities:

- Section 24 - Principles of personal data processing
- Section 25 - Lawful basis of processing
- Section 32 - Designation of Data Protection Officers
- Section 40 - Personal data breach notification
- Part VI - Data subjects' rights

Commission assessment considerations:

- Degree of constitutional derogation permitted
- Lawful basis relied upon
- Impact on data subjects
- Compliance with data protection principles
- Proportionality and necessity
- Opportunity to lodge complaint with Commission

Article 6: Data Processing by Individuals for Household/Personal Purposes

Individuals processing data solely for personal/household purposes must respect data subject privacy and are accountable for conduct putting privacy at risk.

Risky conduct includes:

- Granting apps permission to access phone contacts
- Sharing/transferring personal data to any person/platform
- Lack of duty of care in handling devices storing personal data
- Verbal/written disclosure of personal data
- Unauthorized access to personal data

Article 7: General NDP Act Compliance Measures

Data controllers and processors must:

- Register with Commission as data controller/processor of major importance
- Conduct NDP Act compliance audit within 15 months of commencement, then annually
- File Compliance Audit Returns (CAR) with Commission by March 31 (UHL/EHL)
- Identify all NDP Act obligations and prepare compliance schedules
- Prepare semi-annual data protection reports (detailed 6-month analysis)
- Prepare schedules for Monitoring, Evaluation, Maintenance of data security
- Prepare schedules for internal sensitization and training on data privacy
- Designate Data Protection Officer (DPO) - for major importance entities
- Develop/review organizational privacy policies compliant with NDP Act
- Publish privacy policies on platforms to sensitize data subjects
- Provide privacy and cookie notices on website homepage (must obstruct view)
- Ensure transparency in privacy policy and notices on all platforms
- Develop internal data protection strategy and basic privacy checklist
- Conduct Data Privacy Impact Assessment (DPIA) when required
- Notify Commission of breaches within 72 hours
- Notify data subjects immediately of high-risk breaches
- Update third-party processor agreements for NDP Act compliance
- Design systems for seamless data subject access requests
- Design systems enabling easy data correction/updates
- Design systems for easy data portability
- Train personnel on data protection (within 6 months, then annually minimum)
- Explain complaints process including right to lodge complaint with Commission

Article 8: Designation of Data Controllers/Processors of Major Importance

Section 65 defines 'major importance' as entities domiciled/operating in Nigeria processing data of prescribed numbers of data subjects or processing data of particular value/significance to economy, society or security.

Assessment factors include:

- Risks to data subjects if not under major importance obligations
- Data sovereignty implications
- Sensitivity of personal data
- Data-driven financial assets under care
- Reliance on third-party servers/cloud computing
- Substantial cross-border data flows
- Use of filing systems and automation
- Number of data subjects
- Need for international standard certifications

Three classification levels:

- **Ultra-High Level (UHL)** - Highest standards, complex operations
- **Extra-High Level (EHL)** - High standards, government/critical sectors
- **Ordinary-High Level (OHL)** - Standard compliance requirements

Article 9: Registration Requirements

Registration obligations:

- UHL/EHL: Register once, file CAR annually
- OHL: Renew registration annually, no CAR filing required
- Notify Commission of significant changes within 60 days
- May request removal if no longer qualified as major importance
- Remain responsible for outstanding fees despite removal
- Commission publishes register on website, updates at least annually

Article 10: Filing of NDP Act Compliance Audit Returns

Audit requirements:

- Conduct periodic compliance audits using risk-based approach
- Develop privacy audit controls per global best practices
- Identify each risk point and determine audit frequency
- File CAR annually for major importance entities
- Entities established before June 12, 2023: file by March 31
- Entities established after June 12, 2023: file within 15 months, then annually
- Late filing penalty: 50% of filing fee
- UHL/EHL must file through licensed DPCO
- Commission may issue CAR Certificate upon filing

Article 11: Designation of Data Protection Officer

DPO may be staff member or consultant. Publish DPO contact details and communicate to Commission.

Article 12: Position of the Data Protection Officer

Controller/processor must:

- Actively engage DPO in all data processing issues
- Provide necessary resources for DPO tasks
- Ensure DPO access to processing activities/operations
- Provide continuous training for DPO
- Ensure DPO works without duress/coercion/influence
- Not dismiss/penalize DPO for performing tasks
- DPO reports directly to management level
- Data subjects may contact DPO on all processing/rights issues
- DPO bound by confidentiality
- DPO tasks must not create conflict of interest

Article 13: DPO Semi-Annual Reports

DPO must compile and submit semi-annual data protection reports to management covering:

- Assessment of privacy notices
- Types of data being processed
- Data protection principles compliance
- Lawful bases of processing
- DPIA requirements
- Legitimate Interest Assessment
- Ease of data subject rights exercise
- Data subject complaints and remediation
- Commission notices
- DPCO guidance sought
- Data security assessment
- Cross-border transfer legal grounds
- Breach notifications

Article 14: DPO Credential Assessment

Commission maintains database of Certified DPOs and conducts Annual Credential Assessment (ACA) to ensure professional standards.

Assessment based on:

- Metrics in Schedule 3
- NDP Act, GAID, DPCO Code of Conduct compliance
- Professional body directives on ethics
- Continuous Professional Development evidence
- Verification during CAR/registration process

Article 15: Principles of Personal Data Protection

Eight obligatory principles (Section 24):

- **Fairness, lawfulness and transparency** - Processing must be just, legal, and open
- **Purpose limitation** - Specified, explicit, legitimate purposes only
- **Data minimization and ethics** - Adequate, relevant, minimum necessary
- **Storage limitation** - Retained only as long as necessary
- **Data accuracy** - Accurate, complete, not misleading, kept up-to-date
- **Confidentiality, integrity and availability** - Appropriate security measures
- **Accountability** - Demonstrate compliance with principles
- **Duty of care** - Professional/ethical processing preventing harm

Detailed scope in Schedule 1.

Article 16: Lawful Bases of Data Processing

Data controller must carefully assess and choose appropriate lawful basis before processing.

Six lawful bases (Section 25):

- Consent
- Contractual Obligation
- Legal Obligation
- Vital Interest
- Public Interest
- Legitimate Interest

Data controller is ultimately responsible for determining lawful basis.

Article 17: Reliance on Consent

Prioritize data subject interest through informed consent. Consider alternative bases when consent would defeat rule of law.

Special Rule of Law Indexes (SRLI) considerations:

- Clear and present risk to fundamental rights/freedoms
- Security implications
- Public welfare
- Efficacy in administration of justice
- Sustainable development
- Prior relationship with data subject
- Proportionality and necessity of scope

Accountability requirements:

- Provide appropriate information for informed decision
- Make consent withdrawal as easy as giving consent
- Ensure refusal not detrimental to data subject rights

- Keep proper record of consent

Article 18: Data Processing Which Requires Consent

Consent mandatory for:

- Direct marketing activities
- Processing sensitive personal data
- Further processing incompatible with original purpose
- Processing children's personal data
- Cross-border transfer without adequacy decision
- Solely automated decision-making with legal effects

Article 19: Consent to Cookies and Tracking Tools

Cookie requirements:

- Must comply with data protection principles
- Consent required for cookies (except necessary cookies)
- Consent must be freely given, informed, specific
- Cookie banner must be conspicuous and obvious
- Necessary cookies (security, network stability) don't need explicit consent
- All other cookies require yes/no or accept/reject options

Cookie notice must:

- Be conspicuous (no scrolling required to see)
- Be clear and easy to understand
- Notify purpose of cookies
- Identify responsible organization
- Provide withdrawal information

Article 20: Lawfulness of Purpose

Processing must be lawful under NDP Act, not violate Nigerian legislation, and not violate international law preemptory norms. No consent for atrocities, hate, child rights violations, criminal acts.

Article 21: Reliance on Contract

Key provisions:

- May process for due diligence at preliminary stage
- Destroy data within 6 months if contract doesn't materialize
- Contract must provide for early termination
- Terms ousting Nigerian court jurisdiction are void
- May provide for Alternative Dispute Resolution

Article 22: Reliance on Legal Obligation

Legal obligation means:

- Specific duty imposed by law
- Court order
- Responsibility incidental to legal obligation

Must comply with Section 45 of 1999 Constitution when derogating from privacy rights. Processing justified only if reasonably necessary in democratic society for defence, public safety, order, morality, health, or protecting others' rights.

Safeguards:

- Limited to minimum requirement under law
- Not for speculative claims or discovery voyages
- Consider less intrusive methods
- DPO may provide written opinion on legal competence
- May seek Commission guidance if dissatisfied
- May approach court to vary/set aside judicial orders

Article 23: Evaluation of Lawful Bases

Meticulously evaluate necessity, duty of care, functional redress opportunity, and proportionality. All processing must comply with Sections 37 and 45 of 1999 Constitution.

Article 24: Reliance on Vital Interest

Conditions for vital interest:

- Necessary for preserving life/livelihood
- Failure to act would be harmful
- Legitimate expectation based on relationship/law/convention
- Data controller could be deemed negligent for not processing
- Processing method must be necessary and proportionate
- Must account for processing upon request

Article 25: Reliance on Public Interest

Applicable when:

- Public health/humanitarian emergency
- Clear and present danger to public safety
- Addressing destitution/deprivation for data subject benefit

Processing must be necessary, proportionate, evaluated per Article 23.

Article 26: Reliance on Legitimate Interest

Must show preference basis in compliance audit. Section 25(2) makes compatibility with contract, vital interest, legal obligation, or public interest a basis for legitimate interest.

Mandatory requirements:

- Carry out Legitimate Interest Assessment (Schedule 8)
- Prioritize privacy by design and default (anonymization/pseudonymization)
- Identify and document compatible lawful basis
- Eliminate processing overriding data subject rights
- Eliminate behavioral monitoring/profiling/targeted advertising
- Eliminate processing risking data breach for vulnerable subjects
- Provide transparent information (Section 27)
- Provide prompt remediation of rights
- Prioritize data ethics and duty of care

Article 27: Information to Data Subjects

Information must be clear and consider vulnerable data subjects. Must be understandable form.

Required information includes:

- Name of data controller/processor
- Lawful basis of processing
- Types of personal data collected
- Purpose of processing
- Means of processing
- Access by authorized third parties
- Purpose of third-party access
- Data subjects' rights
- Internal remediation contact
- Right to lodge complaint with Commission

Information provision does not constitute consent request. Consent must be specifically requested when required by law after information provided.

Article 28: Data Privacy Impact Assessment

DPIA mandatory (Section 28) when processing likely results in high risk to rights and freedoms by virtue of nature, scope, context, purposes.

DPIA mandatory for:

- Evaluation/scoring (profiling)
- Automated decision-making with legal/significant effects
- Systematic monitoring
- Sensitive/highly personal data
- Vulnerable data subjects
- Innovative processes/technologies
- Software for communication with data subjects
- Financial services via digital devices
- Healthcare services
- E-commerce services
- Public surveillance cameras
- Legal instruments/policies requiring public data processing
- Educational services processing student records
- Hospitality services
- Cross-border data transfer

Additional requirements:

- Must be vetted by certified DPO accredited by Commission
- Outcome part of CAR filed with Commission
- Failure may result in platform restriction
- Submit to Commission before processing commencement
- Existing processing: conduct within 6 months of GAID issuance
- Must contain privacy by design/default measures
- Must be signed by certified DPO
- Format per Schedule 4

Article 29: Monitoring, Evaluation and Maintenance of Data Security

Must have MEM schedules covering people, processes, technologies with technical and organizational measures:

- Training
- Certifications
- Software updates
- Database vulnerability tests
- Hardware assessment
- Authentication checks
- Encryption reviews
- Quality Assurance

Schedule must be vetted by certified information security officer.

Article 30: Schedule for Internal Sensitization and Training

Must prepare and implement organizational schedule for internal sensitization and training on privacy.

Schedule must:

- Evaluate compliance level with NDP Act/GAID/regulatory instruments
- Identify practices to stop, start, continue
- Be published on appropriate communication mediums
- Include basic privacy checklist as guide
- Include written policy for routine compliance checks without notice

Article 31: Deployment of Data Processing Software

Entities deploying software for tracking/communicating with data subjects must comply with NDP Act.

Mandatory requirements:

- Conduct DPIA before deployment
- Design per privacy by design/default principles
- Follow app store data security guidelines
- Provide data privacy policy within software
- Provide privacy statement before installation covering:
 - - Types of personal data to be processed
 - - Lawful purpose for processing
 - - Data crucial to lawful purposes only
 - - Technical/organizational measures (specify encryption)
 - - DPIA conducted indicating low risk
 - - Prompt technical support accessible
 - - Self-service disable/uninstall/restrict available
 - - Redress of grievances and complaint rights (with links)

Compliance/update required within 6 months of GAID issuance.

Article 32: Measures Against Privacy Breach Abetment

Must prevent platform/facility/network from being used to breach privacy. When Commission notifies of breach use, must immediately restrict user pending investigation. Failure deemed as abetting breach.

Article 33: Data Breach Notification

Section 40(2): Notify Commission within 72 hours of becoming aware of breach likely to result in risk to rights and freedoms. Notify affected data subjects immediately for high-risk breaches.

Notification content must include:

- Description of loss/unauthorized access/disclosure circumstances
- Date/time period of occurrence
- Description of personal information involved
- Risk of harm assessment
- Estimate of affected individuals
- Steps taken to reduce harm risk
- Steps taken to notify individuals
- Contact person name and information

Article 34: Data Processing Agreement

Section 29(2): Data processor must rely on DPA with data controller to carry out processing.

DPA must include:

- Section 29 obligations
- Names and addresses of parties
- Recitals with Principal/Service Level Agreement references
- Purpose of processing
- Location of processing
- Scope of processing
- Lawful bases
- Responsibilities under DPA
- Technical and organizational measures
- DPIA outcome (if relevant)
- Potential risks
- NDP Act compliance evidence
- Confidentiality
- Tenure
- Specific restrictions
- Indemnity
- Insurance
- Force Majeure
- Dispute Resolution

Parties must verify other party's compliance. Controllers/processors accountable for third parties. Sole proprietors/agents in high-risk processing must be trained - evidence of training and registration as rebuttable proof of compliance.

Article 35: Benchmarking with Interoperable Data Privacy Measures

Controllers/processors must be aware of globally interconnected data protection ecosystem. May benchmark with Interoperable Data Privacy Measures (IDPMs) subject to Commission approval.

IDPM examples include:

- Anonymization
- Automated Decision Making
- Child Online Protection
- Data Portability
- Data Subjects' Access Request
- Data Privacy Impact Assessment
- AI Deployment
- Encryption
- Forensic Data Security Audit
- Legitimate Interest Assessment
- Pseudonymization
- Record of Processing Activities

Commission approves within 30 days if satisfied IDPM not prejudicial to NDP Act.

Article 36: Exercise of Right to Rectification

Key provisions:

- Platforms must provide effective rectification opportunity
- No affidavit/newspaper publication required if aligning with NIN data
- No charge for correcting controller/processor input errors
- Must provide ample opportunity to verify data before permanent submission
- Controller/processor must prove ample opportunity was provided

Article 37: Exercise of Right to Data Portability

Applies when:

- Data subject provided data based on consent or contract
- May not apply for processing based on other legal grounds
- May not apply against controllers/processors performing public duties
- Should not prejudice other data subjects' rights/freedoms
- Does not prejudice right to erasure
- Does not imply erasure of data necessary for contract performance

Article 38: Exercise of Right to be Forgotten

Data subject has right to erasure if:

- Data no longer necessary for original purpose
- Individual withdraws consent (when consent is lawful basis)
- Individual objects to legitimate interest processing with no overriding legal ground
- Processing for direct marketing and individual objects
- Data processed unlawfully
- Must erase to comply with legal ruling/obligation

Right may be overridden by:

- Exercising freedom of expression/information (within constitutional limits)
- Complying with legal ruling/obligation
- Performing task in public interest/exercising official authority
- Public health purposes serving public interest
- Preventative/occupational medicine by professional bound by secrecy
- Important public interest, scientific/historical research, statistical purposes
- Establishment of legal defense or exercise of legal claims

If data made public or shared with third parties, controller must ensure third-party erasure. Public interest may override right - burden of proof on controller.

Article 39: Exercise of Right to Lodge Complaint with Commission

Threshold right of redress per Section 37 (1999 Constitution) and Section 46 (NDP Act).

Commission shall:

- Set up electronic complaint platform
- Acknowledge receipt within 7 days
- Continue receiving complaints by reasonable means (hard copy, email)
- Conduct preliminary evaluation considering:
 - NDP Act applicability
 - Urgency and urgent relief
 - Impact on complainant/third party
 - Temporary remedy pending investigation
- Open case file if violation confirmed
- Serve respondent notice of investigation immediately
- Respondent replies within 21 days (unless otherwise specified)
- May invite to Pre-Action Conference (PAC)
- May direct respondent to attend PAC with relevant witnesses
- Direct remedial action if violation determined
- Communicate decision to complainant/affected parties within 7 days
- May issue temporary orders to protect privacy rights

Article 40: Data Subject's Standard Notice to Address Grievance (SNAG)

Commission promotes SNAG use (Schedule 9) as standardized template for demanding internal remediation.

Key features:

- Not condition precedent for Commission complaint or court action
- May be served by data subject, authorized person, or civil society organization
- Commission may create electronic tracking platform
- Controller/processor must communicate decision to Commission via platform
- Commission may investigate unresolved SNAGs
- Serve via physical address, phone, email, courier, or reasonable means

Article 41: Data Ethics, Privacy and Dignity of Human Person

Controllers/processors must prioritize data ethics principles offering additional safeguards to privacy and human dignity.

Core commitments:

- Transparency - clear information on collection/processing/storage
- Fairness - no discrimination based on gender, ethnicity, religion, physical ability
- Responsible data management - robust security measures
- Dignity recognition - acknowledge intrinsic value of every individual's data
- Prohibition of harmful processing - no harm, discrimination, or rights violations
- Explicit consent for third-party sharing with clear purpose/scope/duration
- Continuous education and awareness programs
- Respect for autonomy, freedom, integrity

Article 42: Application of Global Best Practice on Data Ethics

Global best practices for audit:

1. Organizational Policy on Ownership of Data:

- Personal data belongs to natural person
- Unethical to process contrary to owner's objection (considering law/culture/faith)
- Anonymize data when ethical concerns exist
- Consider benefit-sharing from lawful use of others' data

2. Demonstrable Transparency and Accountability:

- Processing must be seen to be transparent
- Disclose all information for informed decision
- Include expected outcomes, technology capabilities, grievance channels
- Negligent transparency may breach trust
- DPO designation and CAR filing demonstrate transparency

3. Informational Autonomy/Self-Determination:

- Respect data subject's informational autonomy
- Don't carelessly share data even with consent
- Mitigate risks of prejudice/abuse from sharing
- Processing for indecent acts violates fairness principle

4. Fairness of Intention:

- Consider lawfulness of purpose
- 'What is not prohibited is permitted' does not apply in data ethics
- Intention must be clear and understandable to data subject

5. Assessment of Outcomes:

- Implement measures for assessing processing outcomes
- Use sandboxes/simulations for likely harmful outcomes
- Disparate outcomes may result in duty of care violation liability
- Consider interlinked character of human rights
- DPIA must analyze potential disparate impact

Article 43: Emerging Technologies

Deploying Emerging Technologies (AI, IoT, Blockchain) for personal data processing requires considering NDP Act, public policy, GAID, and Commission regulatory instruments.

Must set technical/organizational parameters considering:

- Right not to be subject to solely automated decision-making
- Right to be forgotten (vs synthetic data/tokenization)
- Safeguards for sensitive personal data processing
- Safeguards for children and vulnerable groups
- Cross-border data flow regulation
- Privacy by design and default

Requirements:

- Document and file parameters with Commission as part of CAR
- Conduct DPIA considering disparate outcomes and DSVI (Schedule 6)
- Determine suitability of data anonymization upon collection
- Test ETs in low-risk environments
- Determine disparate outcomes and addressability
- Retool and retest until satisfactory or discard if unmitigable risk
- Implement continuous monitoring and evaluation mechanism

Article 44: Parameters for Assessing Privacy/Public Interest in ETs

Commission shall accord priority to ETs strengthening data privacy (Section 5(b)) and consider utilitarian value for sustainable development (Section 1(h)).

May benchmark with global consensus (e.g., UN Resolution on AI). Must refrain from/cease ET systems impossible to operate compliantly with international human rights law or posing undue risks.

Article 45: Cross-Border Data Transfer

Part VIII of NDP Act provides for cross-border transfer. Section 63: Part VIII is overarching provision for all cross-border transfers from Nigeria.

Pending Commission regulatory instrument, use Schedule 5 explanatory note for evaluating countries' adequacy levels and other recognized transfer grounds.

Commission considers enforcement of fundamental rights generally and court decisions advancing fundamental freedoms in jurisdictions considered for adequacy.

Article 46: Capacity Building and Continuous Professional Development

Capacity building is mandatory organizational measure. Commission shall foster capacity building and professional development per Sections 5(e)-(f).

Requirements:

- Train all employees/engaged persons periodically on emerging developments
- Training relevant to job descriptions
- Commission may develop training and certification mechanism

Article 47: Jurisdiction of Court and Access to Justice

Data subjects have right to seek redress per Section 46 of 1999 Constitution. Access to justice includes proximity to courts - data subjects may seek redress at closest Federal or State High Court per Supreme Court precedents and extant Fundamental Rights Enforcement Procedure Rules.

Article 48: Evidence of Compliance with NDP Act

Evidence evaluated in direct context. Compliance with registration, CAR filing, DPIA submission, cross-border transfer instruments shows commitment to accountability and prima facie good faith. Does not replace need for concrete evidence defending against violation complaints. Commission treats compliance as partial fulfillment of cooperation per Section 48(6)(f).

Article 49: Time-Bound and Non-Time-Bound Obligations

Overriding consideration: safeguarding data subject rights per Section 37 (1999 Constitution).

Key provisions:

- Non-timebound obligations must be discharged timeously
- Consider urgency to realize data subject rights/interests
- Storage limitation: 6 calendar months maximum when purpose accomplished (if no timebound provision)
- May store for legal claim defense or due diligence with appropriate measures

Article 50: Supplementary Regulations, Directives and Schedules

Commission may issue supplementary regulations/directives to amend GAID. Controllers/processors must comply. Commission may annex guidance/directives as schedules. In case of conflict, supplementary instrument prevails.

Article 51: Review of Administrative and Financial Obligations

Commission may review obligations under special grounds:

- Bankruptcy of controller/processor
- Legal encumbrances from judicial proceedings
- Dire humanitarian conditions
- Fiscal/developmental policy implementation necessities

Application must demonstrate ground applicability, submitted in writing with verifying affidavit. Commission verifies within 45 days. No waiver may be granted to data subjects' detriment.

Article 52: Definitions

Key defined terms:

- **Appreciation of outcomes:** Systematic analysis of data processing effects/results
- **Basic privacy checklist:** Simple list of steps workers should take with personal data
- **Data Protection Officer:** Expert in data protection ensuring organizational compliance
- **Disparate outcome/impact:** Adverse effect making appropriate task inappropriate/unlawful
- **Domiciliation:** Living/permanently residing in a place (doesn't exempt from NDP Act)
- **Duly certified:** Certified by accredited/approved institution
- **Infraction:** Any degree of violation
- **Interoperable data privacy measures:** Tools ensuring different frameworks work together
- **Platform of data processing:** Any medium for handling personal data
- **Regulatory instruments:** Laws, regulations, directives, codes, guidelines, notices, certifications
- **Sandbox:** Controlled environment for testing before targeted deployment
- **Sustainable development:** Development promoting resilience and inclusiveness

SCHEDULES

Schedule 1: Principles of Data Protection

Detailed explanatory notes on the eight principles: fairness/lawfulness/transparency, purpose limitation, data minimization/ethics, storage limitation, data accuracy, confidentiality/integrity/availability, accountability, duty of care. Includes definitions and implementation guidance.

Schedule 2: NDP Act Compliance Audit Returns

Comprehensive CAR template covering: People and Process (governance, principles, lawful bases, profiling), Technology (data security controls, access controls, business continuity), Accountability (DPIA, LIA, RoPA), Cross-border Transfer, Data Processors.

Schedule 3: Data Protection Officer's Assessment

Assessment metrics (100 points total): Issuing body accreditation (15), Training duration 40+ hours (15), Examination conducted (20), Commission database enrollment (10), Annual CPD (40 - 4 programs minimum).

Schedule 4: Data Privacy Impact Assessment

Comprehensive DPIA template covering: General background, Nature of processing, Lawful basis and context, Necessity and proportionality, Stakeholder consultation, Identified vulnerabilities, Risk assessment (Remote/Possible/Probable, Marginal/Significant/Grave), Disparate outcomes, Cross-border transfer, Principles/rights evaluation, Mitigation recommendations, Final assessment (Go ahead/Modify/Stop), Review frequency.

Schedule 5: Guidance on Cross-Border Data Transfer

Transfer grounds: Adequacy decision, CBDTI approved by Commission, Other lawful bases (jural/fiduciary). Adequacy assessment conditions: Enforceable rights/redress/rule of law, Instruments with competent authority, Public authority data access scrutiny, Effective data protection law, Independent supervisory authority, International commitments. Special circumstances: Legal claim defense, Vital interest, Public interest, Data subject consent, Contract.

Schedule 6: Data Subject's Vulnerability Indexes

Risk factors to consider in developing technical/organizational measures:

- Age (too old or minor)
- Health conditions
- Financial difficulty
- Physical disability
- Lack of capacity to exercise free will
- Lack of education
- Lack of digital literacy
- Lack of access to online security support services

Schedule 7: Guidance Notice on Registration

Designation criteria: Filing system + 200+ data subjects in 6 months, OR commercial ICT services on devices storing personal data, OR processing in specified sectors (Aviation, Communication, Education, Power, Export/Import, Financial, Health, Hospitality, Insurance, Oil/Gas, Tourism, E-commerce, Public Service).

Classification and fees:

- UHL (N250,000): Banks, telecoms, insurance, multinationals, utilities, fintechs, 5000+ data subjects
- EHL (N100,000): MDAs, microfinance, higher institutions, hospitals, mortgage banks, 1000-4999 data subjects
- OHL (N10,000): Primary/secondary schools, training providers, health centres, labs, hotels <50 suites, 200-999 data subjects

Exemptions: Community associations, Faith-based organizations, Foreign embassies, Judicial bodies, Multigovernmental organizations. Data processing fee: UHL pays N5,000 per engaged processor annually.

Schedule 8: Legitimate Interest Assessment Template

Template for deciding if legitimate interest basis applies: Purpose test (why process, benefits, importance, impacts, compliance, ethics, child data, age verification), Necessity test (achieving purpose, proportionality, alternatives, less intrusive methods), Balancing test (nature of data, reasonable expectations, likely impact, opt-out availability), Final decision, Implementation plan.

Schedule 9: Data Subject's Standard Notice to Address Grievance

Standardized template for data subjects to demand internal remediation. Includes: Contact details (complainant and respondent), Nature of violation checkboxes (Unauthorized access/use, Loss of record, Intrusive CCTV, Inaccurate data, Identity theft, Excessive processing, etc.), Data type (Sensitive/Non-sensitive), Violation particulars (when, where, who, how), Loss suffered (Financial, Reputational, Health, Education, Job, Property, Family, Others), Demand, Timeline, Notice of Commission tracking, Status report section.

Schedule 10: NDP Act Compliance Audit Returns Filing Fee

Fee structure by tier and data subject volume:

Level	Tier	Data Subjects	Fee (N)
UHL	A	50,000+	1,000,000
UHL	B	25,000-49,999	750,000
UHL	C	<25,000	500,000
EHL	A	10,000+	250,000
EHL	B	5,000-9,999	200,000
EHL	C	<5,000	100,000

CERTIFICATION

Issued under the hand of Dr. Vincent O. Olatunji, CDPO CPPPS, FIIM
National Commissioner/CEO, Nigeria Data Protection Commission
20th Day of March, 2025

This RAG document is formatted for optimal information retrieval and AI-assisted analysis. All articles and schedules are clearly structured with hierarchical organization for efficient querying, reference, and compliance assessment.